

in his character of trustee has become so amalgamated with his general property that it can no longer be identified, the representative of the trust has then no other remedy but to come in as a general creditor and prove for the amount of the loss (*i*). But, in one case, though * the [*242] trust money had *got into* the general fund, it was held, but under very particular circumstances, to have subsequently *got out again* (*a*).

12. Case of a bankrupt trustee having a beneficial interest. —

As a general rule, where the bankrupt has a substantial beneficial interest, however small, in property legally vested in him, such property passes to the creditors' trustee, who takes as trustee for the creditors and other parties interested (*b*). It is conceived, however, that the rule would not apply to a case where a bankrupt is expressly a trustee, though he may himself have some partial beneficial interest, for his act ought not to work a prejudice to others, and as a conveyance by the bankrupt himself to a stranger would be a breach of trust, it can hardly be supposed that the Bankrupt Act could be construed to have a similar tortious effect (*c*). Where the trust is constructive and the equity doubtful, the Court has sometimes directed the creditors' trustee to concur in conveying (*d*). And where the *legal* property passes, the *cestuis que trust* may have the same relief in equity against the creditors' trustee, as they would have been entitled to against the bankrupt himself (*e*).

(*i*) *Ex parte Dumas*, 1 Atk. 234; *per* Lord Hardwicke; *Ryall v. Rolle*, 1 Atk. 172, *per* Burnet, J.; *Scott v. Surman*, Willes, 403, 404, *per* Willes, C. J.; [*Ex parte Dale and Co.*, 11 Ch. D. 772; and see *Re Hallett's Estate*, 13 Ch. D. 696.]

(*a*) *Ex parte Sayers*, 5 Ves. 169.

(*b*) *Carpenter v. Marnell*, 3 B. & P. 40; *Parnham v. Hurst*, 8 M. & W. 743; *Leslie v. Guthrie*, 1 Bing. N. C. 697; *D'Arnay v. Chesneau*, 13 M. & W. 809. See *Boddington v. Castelli*, 1 Ell. & Bl. 879.

(*c*) See *Faussett v. Carpenter*, cited *ante*, p. 226, as to the effect of a con-

veyance expressed in general words upon a trust estate.

(*d*) *Bennet v. Davis*, 2 P. W. 316; *Taylor v. Wheeler*, 2 Vern. 564; *Ex parte Gennys*, Mont. & Mac. 258.

(*e*) *Bennet v. Davis*, 2 P. W. 316; *Taylor v. Wheeler*, 2 Vern. 564; *Mitford v. Mitford*, 9 Ves. 100, *per* Sir W. Grant; *Ex parte Dumas*, 2 Ves. 585, *per* Lord Hardwicke; *Hinton v. Hinton*, 2 Ves. 633, *per eundem*; *Grant v. Mills*, 2 V. & B. 309, *per* Sir W. Grant; *Jones v. Mossop*, 3 Hare, 572, *per* Sir J. Wigram; *Tyrrell v. Hope*, 2 Atk. 558; *Bowles v. Rogers*, 6 Ves. 95, note (*a*); *Ex parte Hansom*,